



File No.: EXP202310442

RESOLUTION OF TERMINATION OF THE PROCEDURE BY VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On November 28, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against A.A.A. (hereinafter, the respondent), through the Agreement that is transcribed:

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File No.: EXP202310442

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: B.B.B. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on June 21, 2023, directed against A.A.A. with NIF ***NIF.1 (hereinafter, the respondent). The reasons on which the complaint is based are as follows:

The complainant identifies as a worker of an establishment - ***EMPRESA.1, located at ***DIRECCION.1) for which the respondent is responsible and indicates that, in said establishment, there is a video surveillance system that is not properly signposted with the required informative signs of the monitored area and that the workers have not been informed about this system. It also states that there is a control screen displaying images from different video surveillance cameras visible from any point in the establishment, including to any customer present. It further indicates that the system records sound (mentioning in this regard the existence of 7 videos provided as evidence in a judicial proceeding (...), which they submitted containing audio recordings), that the respondent does not delete the images after 30 days (in this regard, it mentions that in the indicated procedure they have also submitted 5 videos that are 14 to 15 months old without any complaint or justified cause for their storage), that there is no record of processing activities, and that there are cameras that could capture public streets, even at some point a customer has complained about this situation.

The complaint is accompanied by the following documentation:

- Image titled photo_2.jpg in which a monitor with images from a video surveillance system is discernible.
- Image titled photo_3.jpg showing the façade, as well as some tables installed on the terrace and inside the establishment.
- Video titled video1.mp4, lasting 1'36", recording the moment of the complainant's entry into the establishment to start their workday, on a day identified as December 6, at 07:50.
- Video titled video2.mp4, lasting 34", showing the moment the complainant starts their workday, at 08:25.

Among the documentation submitted, the recordings with sound referred to in the complaint and the videos that are 14 to 15 months old indicated to be submitted in a judicial proceeding are not included.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was notified on July 21, 2023, as evidenced by the acknowledgment of receipt in the file.

THIRD: On September 21, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On September 22, 2023, a written response to the forwarding action was received in this Agency, indicating the following:

- Data of the person responsible for the video surveillance system: A.A.A. ***NIF.1
- Photos of the 8 video surveillance cameras in my establishment
- Photos of the existing signs warning of the existence of the monitored area, as well as the sign informing of the data controller
- Photo of the mobile screen where the recordings are visible. There is currently no monitor where the images are reproduced; instead, it is done on the mobile of the data controller using an application that requires a password for access.

We want to declare that the cameras are not used for labor control.

There is no company contracted for security.

The retention period for the images is one week.

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Requests: that the documentation submitted and the statements made be accepted and that the file be archived without further processing.

Along with the response to the transfer action, the following documentation is provided:

- Image titled APLICACIÓN MÓVIL CÁMARAS.jpg in which an application is highlighted with a white circle.
- Image titled PANTALLA DEL MÓVIL.png in which, identified with Chinese characters, 9 images are displayed, 8 of which correspond to those viewed through 8 surveillance cameras. Of these 8 images, 4 (cameras 03, 05, 07, and 08) allow viewing various areas of the establishment's dining room (in one of them, 05, a customer can even be seen from behind), 2 (cameras 01 and 02) show a bar area, 1 (camera 04) shows a cash register, and another (camera 06) shows a gambling machine or slot machine. Camera 01 also allows viewing the entrance of the establishment, including a portion of public road, and camera 08 also allows viewing the tobacco vending machine.
- Document titled cámaras 1(6).pdf containing 8 images from the same number of surveillance cameras installed throughout the establishment. In two of them, it is clearly seen that they focus, respectively, on the cash register and the area of gambling machines or slot machines. The rest appear to be oriented towards various points of the establishment.
- Document titled carteles.pdf which includes a photograph of a sign reading ZONA VIDEOVIGILADA, referencing Organic Law 15/1999 on data protection, and identifying the respondent as the party before whom rights regarding data protection can be exercised, also indicating, in handwriting, a phone number and an email address for this purpose. It also includes 3 photographs showing the signs that inform, both outside and inside the establishment, that it is a monitored area and warns of immediate notification to the police. These signs do not reference any rights regarding data protection.

LEGAL GROUNDS

I

Competence

According to the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

It should be noted that, according to Article 4.1 of the GDPR, "personal data" means any information relating to an identified or identifiable natural person ("the data subject"); an identifiable natural person

is one whose identity can be determined, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that person.

Article 4.2 of the GDPR defines processing as "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure, or destruction."

Images of a natural person are personal data, and their capture by a system of cameras or video cameras constitutes processing of personal data that is subject to data protection regulations, unless it is an exempt processing, such as domestic processing.

Section 7 of the aforementioned Article 4 of the GDPR defines the "data controller" or "controller" as: the natural or legal person, public authority, agency, or other body that, alone or jointly with others, determines the purposes and means of the processing; if the law of the Union or of the Member States determines the purposes and means of the processing, the controller or the specific criteria for its designation may be established by the law of the Union or of the Member States.

As has been established by the response to the transfer action carried out, the respondent is responsible for the surveillance system installed in its establishment and subject to this complaint.

Therefore, we are dealing with a processing of personal data for which the respondent is responsible and which must comply with the requirements established by data protection regulations in this regard.

III

Data Protection Regulations

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In the present case, and as specified in the facts, the claim concerns the installation of a video surveillance system that, according to the claimant, may not be complying with the provisions of data protection regulations.

In this regard, we must begin by indicating that Article 6.1 of the GDPR establishes the circumstances that allow for the lawful processing of personal data. More specifically, regarding processing for video surveillance purposes, Article 22 of the LOPDGDD - Processing for Video Surveillance Purposes - establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems with the aim of preserving the safety of individuals and property, as well as their facilities.

On the other hand, it should be noted that the processing of personal data is subject to the principles indicated in Article 5 of the GDPR and, specifically, in the case at hand, to what is stated in paragraph 1 c) of that provision, which provides as follows:

Personal data shall be (...) "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization')."

This means that, in a specific processing operation, only the relevant personal data that is strictly necessary to fulfill the purpose for which it is processed may be processed. The processing must be appropriate and proportional to the purpose it is directed at. Likewise, relevance in the processing of data must occur both at the time of data collection and in the subsequent processing carried out on them. In accordance with the above, the processing of excessive data must be restricted or these must be deleted.

The application of the data minimization principle in the context of video surveillance entails that images of public roads cannot be captured, since the processing of images in public places can only be carried out by the Security Forces and Corps. However, on some occasions, for the protection of private spaces where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the security purpose. That is, cameras and video cameras installed for security purposes may not obtain images of the public road unless it is essential for that purpose or it is impossible to avoid it due to their location. In such an extraordinary case, the cameras may only capture the minimum portion necessary to preserve the safety of individuals and property, as well as their facilities.

In this sense, paragraph 2 of Article 22 provides as follows:

2. Images of the public road may only be captured to the extent that it is essential for the purpose mentioned in the previous paragraph. However, it will be possible to capture images of the public road to a greater extent when necessary to ensure the safety of property or...

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strategic facilities or infrastructure linked to transportation, without in any case allowing for the capture of images from within a private residence.

In no case will the use of surveillance practices beyond the environment subject to the installation be permitted, and in particular, it cannot affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space. The installed cameras may not capture images of private spaces belonging to third parties and/or public spaces without a duly justified cause, nor may they affect the privacy of passersby freely moving through the area. Images may also not be captured or recorded in spaces owned by third parties without the consent of their owners, or, where applicable, of the individuals present in those spaces. Furthermore, it is disproportionate to capture images in private spaces, such as changing rooms, lockers, or rest areas for workers.

On the other hand, Article 12.1 of the GDPR states that anyone who carries out the processing of personal data, such as capturing images through a video surveillance system, must provide the interested parties with the information indicated in Articles 13 and 14 of the GDPR.

In order for the information duty provided for in Article 12 of the GDPR to be fulfilled in a concise and understandable manner for the affected party, the aforementioned Article 22 of the LOPDGDD provides for a "layered information" system in relation to video surveillance. In this sense, the first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the data controller, the possibility of exercising the rights provided for in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

The information in the second layer must be available in a location easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a web address, and must refer to the remaining elements of Article 13 of the GDPR. It is not necessary to specify the precise location of the video surveillance equipment.

This information duty will be considered fulfilled by placing an informative device in a sufficiently visible location, and at a minimum, at the entrances to the monitored areas, whether they are interior or exterior. If the monitored space has several entrances, such a sign indicating the video surveillance area must be placed at each of them.

This information must be provided in advance, as stated in Recital 39 of the GDPR, which states the following:

(...). For natural persons, it must be completely clear that personal data concerning them is being collected, used, consulted, or otherwise processed, as well as the extent to which such data is or will be processed. The principle of transparency requires that all information and communication relating to the processing of such data be easily accessible and easy to understand, and that simple and clear language be used. This principle is

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specifically refers to the information provided to data subjects regarding the identity of the data controller and the purposes of the processing, as well as the additional information to ensure fair and transparent processing concerning the affected individuals and their right to obtain confirmation and communication of the personal data concerning them that is being processed. Data subjects must be aware of the risks, rules, safeguards, and rights related to the processing of personal data, as well as

how to assert their rights in relation to the processing. In particular, the specific purposes of the processing of personal data must be explicit and legitimate, and must be determined at the time of collection. Personal data must be adequate, relevant, and limited to what is necessary for the purposes for which it is processed. This requires, in particular, ensuring that the retention period is strictly limited to a minimum. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means. To ensure that personal data is not retained longer than necessary, the data controller must establish deadlines for its deletion or periodic review. All reasonable measures must be taken to ensure that inaccurate personal data is rectified or deleted. Personal data must be processed in a manner that ensures adequate security and confidentiality of the personal data, including to prevent unauthorized access or use of such data and the equipment used in the processing.

IV

Obligations regarding video surveillance

Furthermore, the processing of images through a video surveillance system, in order to comply with current regulations (Article 22 of the LOPDGDD), must meet the following specific requirements:

- 1.- Individuals or legal entities, public or private, may establish a video surveillance system for the purpose of preserving the safety of individuals and property, as well as their facilities. It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, in accordance with Recital 39 of the GDPR.
- 2.- The images obtained may not be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.
- 3.- The obligation to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and 22 of the LOPDGDD must be complied with. In this regard, a "layered information" system is provided in relation to video surveillance. The first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the controller, the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data. This information must be contained in a device placed in a sufficiently visible location and must be provided in advance. The information in the second layer must be...

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to be available in a location easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a web address, and it must refer to the other elements of Article 13 of the GDPR.

- 4.- The processing of images through the installation of camera or video camera systems must be lawful and comply with the principles of proportionality and data minimization, as previously indicated.
- 5.- Images may be retained for a maximum period of one month, except in cases where they must be retained to prove the commission of acts that threaten the integrity of individuals, property, or facilities. In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording was obtained.
- 6.- The data controller must maintain a record of activities of the processing carried out under their responsibility, which includes the information referred to in Article 30.1 of the GDPR.
- 7.- The data controller must conduct a risk analysis or, where appropriate, a data protection impact assessment, to identify the risks arising from the implementation of the video surveillance system, evaluate them, and, where applicable, adopt appropriate security measures.
- 8.- When a security breach occurs that affects the processing of cameras for security purposes, whenever there is a risk to the rights and freedoms of individuals, it must be reported to the AEPD within a maximum period of 72 hours. A security breach is understood to be the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or the

unauthorized communication or access to such data.

9.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

V

Breach of Obligation. Article 5.1 c) of the GDPR

As noted, in the case examined, it is evident from the documents in the file that the data controller has installed a video surveillance system with, apparently, the purpose provided in Article 22 of the LOPDGDD. In this regard, it should be noted that, although the complaint indicated—and this was justified by one of the images provided by the complainant—the existence of a monitor displaying the images captured by the system visible to the entire establishment, it has been established in the response to the transfer that this monitor has been replaced by an application installed on the mobile phone of the data controller.

Having established the above, according to the information in the file, the area captured by the cameras includes the tables of the establishment where customers...

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They are located during their visit to the establishment—evidenced even in one of the images provided by the defendant to one of these clients—besides the area of the cash register, the gambling machines or slot machines, the tobacco vending machine, and the access door to the premises.

Although it is observed that the camera focusing on the door of the establishment captures a portion of the public road, this capture is deemed proportionate as it only includes the essential part necessary for achieving the security purpose of protecting persons, property, and facilities, in accordance with Article 22.2 of the LOPDGDD.

Similarly, it can be understood that the rest of the installed cameras are proportionate in compliance with the security purpose for which the video surveillance system is installed, except in the case of those that capture the tables of the establishment.

By its very nature, the area of the dining tables is a location where those affected by the processing may remain for a long time, and in a situation where their fundamental right to the protection of personal data may be affected, as well as other rights and freedoms, such as their privacy or the free development of their personality, especially since these places are usually visited during leisure time. Furthermore, there is no special reason justifying the surveillance of areas such as the tables concerning the security of the establishment, as there might be for confined spaces such as the entrance/exit or the cash register.

In this regard, the permanent capture of the area of the room and the tables when customers are present would not comply with the requirements of the principle of minimization of processing personal data "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed."

In this respect, it is important to note that, according to the information provided by the responsible party, even without further accreditation in this regard, the captured images are retained for a period of one week. Thus, the data of all customers who have visited the establishment are stored during that period.

In this case, the impact on the fundamental right to the protection of personal data, understood as the power of disposition and control held by the data subject, is significantly greater than the alleged interest that the defendant seeks to achieve, which is the preservation of the security of property and persons in the area of the tables of the establishment.

Likewise, from the information and documentation in the file, the defendant does not demonstrate the necessity of carrying out this processing of personal data based on the purpose concerning the area of the customers' tables in light of the circumstances described above. Therefore, and without prejudice to what results from the instruction, it is understood that the described facts could constitute a violation

of the aforementioned Article 5.1 c).

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VI

Classification and Qualification of the Violation

In accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the known facts could constitute a violation, attributable to the defendant, of the aforementioned Article 5.1 c).

This violation is classified under Article 83.5 of the GDPR, which states the following:

"Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; In this regard, the LOPDGDD, in its Article 71, states the following:

"Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute violations."

For the purposes of the statute of limitations for violations, the imputed violation prescribes after three years, in accordance with Article 72 of the LOPDGDD, which qualifies the following conduct as very serious:

1.

According to what is established in Article 83.5 of Regulation (EU) 2016/679, violations that constitute a substantial infringement of the articles mentioned therein are considered very serious and will prescribe after three years, particularly the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

VI

Proposal for Sanction

In this case, based on the facts presented and without prejudice to what results from the instruction of the procedure, it is considered that the sanction that should be imposed is an administrative fine.

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state the following:

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"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage and harm they have suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the data subjects;

d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented under Articles 25 and 32;

e) any previous infringement committed by the controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, compliance with those measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42;

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

It is also considered appropriate to adjust the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR:

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- the nature of the infringement of having a video surveillance system that is directed towards the area reserved for the free recreation of customers continuously, processing data of identifiable or potentially identifiable individuals in an indeterminate number, which may also affect other rights and freedoms of customers or passersby (art. 83.2 a) GDPR).

- the intentionality or negligence of the infringement (art. 83.2 b) GDPR), given that, negligently, the required proportionality assessment was not conducted prior to implementing the processing that would affect all individuals visiting the establishment.

For all these reasons, in accordance with what has been indicated, and without prejudice to what results from the instruction of the procedure, the initial assessment of the amount of the fine is €4,000 for the infringement of Article 5.1 c) of the GDPR.

VII

Obligation not fulfilled. Article 13 GDPR

As previously indicated, the installation of a video surveillance system must be properly informed, so that those affected by the capture of their image can know and exercise their rights regarding personal data protection.

In this regard, paragraph 4 of Article 22 of the LOPDGDD provides as follows:

4. The duty of information provided for in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an informative device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679. An internet connection code or address to this information may also be included in the informative device.

In any case, the controller must keep the information referred to in the aforementioned regulation available to the affected individuals.

For its part, Article 13 GDPR states the following:

1. When personal data relating to a data subject is obtained from that data subject, the controller shall provide all the information indicated below at the time of obtaining such data:

a) the identity and contact details of the controller and, where applicable, of its representative;

b) the contact details of the data protection officer, where applicable;

c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;

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- d) when the processing is based on Article 6, paragraph 1, letter f), the legitimate interests of the controller or a third party;
- e) the recipients or categories of recipients of the personal data, if applicable;
- f) if applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49, paragraph 1, second sentence, reference to the appropriate or suitable safeguards and the means to obtain a copy of these or the fact that they have been provided.
2. In addition to the information mentioned in paragraph 1, the controller shall provide the data subject, at the time when the personal data are obtained, with the following information necessary to ensure fair and transparent data processing:
- a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the controller access to personal data concerning the data subject, and their rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability;
- c) when the processing is based on Article 6, paragraph 1, letter a), or Article 9, paragraph 2, letter a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent before its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and has been informed of the possible consequences of not providing such data;
- f) the existence of automated decisions, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.
3. When the controller intends to further process personal data for a purpose other than that for which they were collected, it shall provide the data subject, prior to that further processing, information on that other purpose and any other relevant information in accordance with paragraph 2.

4. The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information.

In this regard, it is noted in the file, as provided by the respondent, an image of an informative poster warning of the existence of a video surveillance area, mentioning Organic Law 15/1999 on personal data protection, and indicating that the data subject can exercise their rights by providing the contact details (telephone and email) of the respondent. It should be noted that this last information is handwritten, making it difficult to understand, especially regarding the email address.

Additionally, photographs of the posters informing, both outside and inside the establishment, that it is a video surveillance area and warning of immediate notification to the police are provided. These posters do not reference any rights regarding data protection.

In light of the evidence in the file, the informative poster provided by the respondent and displayed at the establishment not only refers to a previous and currently repealed regulation (let us remember that, since May 25 and December 7, 2018, respectively, the GDPR and the LOPDGDD have been in force, which currently configure the legal regime regarding personal data protection), but also, in addition to

the unintelligibility of some of its parts, the informative poster does not address the content of Article 22 LOPDGDD and, notably, does not include any indication on how to obtain the rest of the information regarding data processing with all the aspects referred to in Article 13 GDPR. This is without prejudice to the "layered" information we referred to earlier.

Therefore, in light of the evidence available at this moment in the initiation of the sanctioning procedure and without prejudice to what results from the instruction, it can be understood that the described facts constitute a violation of Article 13 GDPR.

VIII

Classification and qualification of the infringement

In accordance with the indications available at this moment in the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the known facts could constitute an infringement, attributable to the respondent, of Article 13 GDPR.

This infringement is classified under Article 83.5.b) of the GDPR, which states the following:

"Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

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b) the rights of the data subjects pursuant to Articles 12 to 22; (...)"

For the purposes of the statute of limitations, Article 72 of the LOPDGDD states:

1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following violations are considered very serious and will be subject to a three-year statute of limitations, particularly the following:

h) The failure to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this organic law.

IX

Proposal for sanction

In this case, based on the facts presented and without prejudice to the outcome of the instruction of the procedure, it is considered that the sanction to be imposed is an administrative fine.

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR, previously indicated, must be observed.

Furthermore, it is considered appropriate to adjust the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR:

- the nature of the infringement for having a video surveillance system that does not have an adequate information sign and is directed towards the dining area, processing data of identifiable or potentially identifiable individuals, which may also affect other rights and freedoms of customers or passersby (Article 83.2 a) GDPR).

- the intentionality or negligence of the infringement (Article 83.2 b) GDPR), given that, through negligence, the current applicable regulations have not been taken into account in order to properly inform the data subjects about their rights and the means available for their exercise.

For all these reasons, in accordance with what has been stated, and without prejudice to the outcome of the instruction of the procedure, the initial assessment of the amount of the fine is 1,000 euros for the infringement of Article 13 of the GDPR.

X

Adoption of measures

If the infringement is confirmed, it may be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations

comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...". The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

In this case, it may be ordered that within one month from the resolution that concludes this sanctioning procedure becomes final and enforceable, the necessary measures be adopted:

- To prevent the cameras that make up the video surveillance system from continuously focusing on the area of tables in the establishment.

- To install an information sign about the existence of a video-surveilled area that complies with the requirements established in the data protection regulations.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, based on the above, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against A.A.A., with NIF ***NIF.1, for the alleged infringement of Articles 5.1 c) and 13 classified in Article 83.5.a) and b), respectively, of the GDPR.

SECOND: TO APPOINT R.R.R. as instructor and S.S.S. as secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the claimant and its documentation, as well as the documents obtained and generated by the General Subdirectorate for Data Inspection in the actions prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be:

- for the alleged infringement of Article 5.1 c) of the GDPR, classified in Article 83.5.a) of that regulation, an administrative fine of 4,000 euros, without prejudice to what results from the instruction.

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- for the alleged infringement of Article 13 of the GDPR, classified under Article 83.5.b) of said regulation, an administrative fine of 1,000 euros, without prejudice to what results from the instruction.

FIFTH: NOTIFY this agreement to A.A.A., with NIF ***NIF.1, granting a hearing period of ten working days for them to submit allegations and present any evidence they deem appropriate. In their written allegations, they must provide their NIF and the file number indicated in the heading of this document. If no allegations are made regarding this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, they may acknowledge their responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 4,000.00 euros, resolving the procedure with the imposition of this sanction.

Similarly, they may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at 4,000.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one applicable for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within

the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were to be applied, the amount of the sanction would be set at 3,000.00 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the express withdrawal or renunciation of any action or administrative appeal against the sanction. For these purposes, in case of opting for any of them, they must send to the General Subdirectorate of Data Inspection an express communication of the withdrawal or renunciation of any action or administrative appeal against the sanction indicating which of the two reductions they are opting for or if it is for both.

In the event that they choose to proceed with the voluntary payment of any of the amounts indicated above (4,000.00 or 3,000.00 euros), they must do so by depositing it into account no. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which they are adhering.

Likewise, they must send the proof of deposit to the General Subdirectorate of Inspection along with the express communication of the withdrawal or renunciation of any action or administrative appeal against the sanction to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. If this period elapses without a resolution being issued and notified, it will become void, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

935-181024

Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On December 16, 2024, the respondent has proceeded to pay the sanction in the amount of 3,000.00 euros making use of the two reductions provided in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility regarding the facts referred to in the Initiation Agreement and its legal qualification.

THIRD: The respondent has expressly waived any action or administrative appeal against the sanction.

FOURTH: The previously transcribed Initiation Agreement indicated that, if the infringement were confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...".

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the Initiation Agreement is appropriate.

LEGAL GROUNDS

I

Competence

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In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47,

48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the Procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in Sanctioning Procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when a pecuniary sanction can be imposed along with a non-pecuniary sanction but the latter has been justified as inappropriate, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent body to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation."

III

Voluntary Payment and Acknowledgment of Responsibility

In accordance with the provisions of the aforementioned Article 85 of the LPACAP, the notified initiation agreement allowed for the voluntary payment of the proposed sanction and acknowledgment of responsibility, which would entail a reduction of 40% of its amount. With the application of this reduction, the sanction would be set at 3,000.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

Following the notification of the aforementioned initiation agreement, the respondent has proceeded with the voluntary payment and acknowledgment of responsibility, availing themselves of the two reductions provided and expressly waiving any action or administrative appeal.

It should be noted that, in accordance with the provisions of the LPACAP, as well as the jurisprudence of the high court in this matter, the exercise of voluntary payment by the alleged responsible party does not exempt the administration from the obligation to resolve and notify all procedures, regardless of their initiation form. Likewise, Article 88 of the aforementioned regulation establishes that the resolution that concludes the procedure will decide all issues raised by the interested parties and any other matters arising from it.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the commission of the infringements and CONFIRM the sanctions determined in the dispositive part of the initiation agreement transcribed in this resolution.

The sum of the aforementioned amounts yields a total of 5,000.00 euros.

After the respondent has proceeded with the prompt payment and acknowledgment of responsibility, it is hereby resolved, pursuant to Article 85 of the LPACAP, to reduce the aforementioned total by 40%, resulting in a final amount of 3,000.00 euros.

SECOND: TO DECLARE the termination of procedure EXP202310442, in accordance with the

provisions of Article 85 of the LPACAP.

THIRD: TO ORDER A.A.A. to notify the Agency of the adoption of the measures described in the legal grounds of the initiation agreement transcribed in this resolution within 1 month from the date this resolution becomes final and enforceable.

FOURTH: TO NOTIFY this resolution to A.A.A.

FIFTH: In accordance with the provisions of Article 85 of the LPACAP, which conditions the reduction for voluntary payment and acknowledgment of responsibility on the withdrawal or renunciation of any action or administrative appeal, the present authority accepts the express renunciation stated by the respondent, thus precluding the filing of a discretionary appeal for reconsideration against this resolution, all without prejudice to the possibility of resorting to the contentious-administrative jurisdiction.

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Consequently, taking into account the provisions of Article 90 of the LPACAP, given that no administrative appeal is possible due to the express waiver, this resolution shall be fully enforceable from the notification thereof.

However, in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

1259-101224

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to the vacancy of the Presidency and Deputy Presidency

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